

terest in and expansive authority to act in preservation of monuments and records of historical value to our national heritage are fully established. *United States v. Gettysburg Electric R. Co.*, 160 U. S. 668 (1896); *Roe v. Kansas*, 278 U. S. 191 (1929).⁴² A legislature thus acts responsibly in seeking to accomplish either of these objectives. Neither supports an implication of a legislative policy designed to inflict punishment on an individual.

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A third recognized test of punishment is strictly a motivational one: inquiring whether the legislative record evinces a congressional intent to punish. See, *e. g.*, *United States v. Lovett*, 328 U. S., at 308-314; *Kennedy v. Mendoza-Martinez*, *supra*, at 169-170. The District Court unequivocally found: "There is no evidence presented to us, nor is there any to be found in the legislative record, to indicate that Congress' design was to impose a penalty upon Mr. Nixon . . . as punishment for alleged past wrongdoings. . . . The legislative history leads to only one conclusion, namely, that the Act before us is regulatory and not punitive in character." 408 F. Supp., at 373 (emphasis omitted). We find no cogent reason for disagreeing with this conclusion.

First, both Senate and House Committee Reports, in formally explaining their reasons for urging passage of the Act, expressed no interest in punishing or penalizing appellant. Rather, the Reports justified the Act by reference to objectives that fairly and properly lie within Congress' legislative competence: preserving the availability of judicial evidence and

⁴² These cases upheld exercises of the power of eminent domain in preserving historical monuments and like facilities for public use. The power of eminent domain, however, is not restricted to tangible property or realty but extends both to intangibles and to personal effects as involved here. See *Cincinnati v. Louisville & Nashville R. Co.*, 223 U. S. 390, 400 (1912); *Porter v. United States*, 473 F. 2d 1329 (CA5 1973).